

14. THE UNITED NATIONS

- It is an international organization whose stated aims include promoting and facilitating cooperation in international law, international security, economic development, social progress, human rights, civil rights, civil liberties, political freedoms, democracy, and the achievement of lasting world peace.
- United Nations organization designed to maintain international peace and to protect their members from the threat of war.
- No doubt the United Nations is a multifunctional organization yet its chief function is the maintenance of world peace and security.
- The stipulation in the UN Charter that membership is open to all “peace loving” countries reaffirms this purpose, as does the charter’s requirement that members “settle their international disputes by peaceful means in such a manner that international peace and security, and justice, are not endangered.”
- In order to perform its significant and foremost role of maintaining peace and security the three major methods employed by the UN are pacific settlement, collective security and preventive diplomacy or peace-keeping.
- The first two are provided in the UN Charter whereas the third one was invented by its most active secretary-General.
- In 1945 there was no peace to settle the problems of the postwar world.
- In 1947 the Allies made peace treaties with Italy, Hungary, Romania, Bulgaria and Finland; in 1951 with Japan; in 1955 with Austria; and not until 1990 with Germany.
- In the summer of 1945 the line between the western democracies and the Soviet Union had still to be drawn.¹¹¹
- At that time most people’s hopes were pinned on the United Nations Organization which, under American auspices, had just been established to guarantee world peace.
- Unlike in 1919, the US now embraced the idea of collective security.

Origin of UNO

- The United Nations as an international organization has its origins in World War II.
- Since then its aims and activities have expanded to make it the standard international body in the early 21st century.
- US President Franklin Delano Roosevelt first suggested using the name United

Nations to refer to the Allies of World War II.

- Roosevelt suggested the term to Winston Churchill who cited Byron's use of the phrase "united nations" in *Childe Harold's Pilgrimage*, which referred to the Allies at the Battle of Waterloo in 1815.
- Franklin Roosevelt adopted the name and the first official use of the term occurred on January 1, 1942 with the Declaration by the United Nations. During subsequent phases of World War II the Allies used the term United Nations to refer to their alliance.
- In 1945, representatives of 50 countries met in San Francisco at the United Nations Conference on International Organization to draw up the United Nations Charter.
- Those delegates deliberated on the basis of proposals worked out by the representatives of China, the Soviet Union, the United Kingdom and the United States at Dumbarton Oaks, United States in August-October 1944.
- The Charter was signed on 26 June 1945 by the representatives of the 50 countries. Poland, which was not represented at the Conference, signed it later and became one of the original 51 Member States.
- The United Nations officially came into existence on 24 October 1945, when the Charter had been ratified by China, France, the Soviet Union, the United Kingdom, and the United States and by a majority of other signatories. United Nations Day is celebrated on 24 October each year.
- The League of Nations formally dissolved itself on 18 April 1946 and transferred its mission to the United Nations.

History of United Nations Charter

- The United Nations Charter¹¹¹ is the treaty that established the United Nations. The following series of events led to the writing of the Charter, and the UN's founding.

12 June 1941 - The Declaration of St. James's Palace

- In June 1941, London was the home of nine exiled governments. The great British capital had already seen twenty-two months of war and in the bomb-marked city, air-raid sirens wailed all too frequently.
- Practically all Europe had fallen to the Axis and ships on the Atlantic, carrying vital supplies, sank with grim regularity.
- But in London itself and among the Allied governments and peoples, faith in ultimate victory remained unshaken. And, even more, people were looking beyond

military victory to the postwar future.

14 August 1941 - The Atlantic Charter

- Two months after the London Declaration came the next step to a world organization, the result of a dramatic meeting between President Roosevelt and Prime Minister Churchill.

1 January 1942 - The Declaration of the United Nations

- Representatives of 26 countries fighting the Rome-Berlin-Tokyo Axis, decide to support the by Signing the Declaration of the United Nations.

1943 - Moscow and Teheran Conference

- Thus by 1943 all the principal Allied nations were committed to outright victory and, thereafter, to an attempt to create a world in which “men in all lands may live out their lives in freedom from fear and want.”
- But the basis for a world organization had yet to be defined, and such a definition came at the meeting of the Foreign Ministers of Great Britain, the United States and the Soviet Union in October 1943.

1944-1945 - Dumbarton Oaks and Yalta

- The principles of the world organization-to-be were thus laid down. But it is a long step from defining the principles and purpose of such a body to setting up the structure.
- A blueprint had to be prepared, and it had to be accepted by many nations.

1945 - San Francisco Conference

- Forty-five nations, including the four sponsors, were originally invited to the San Francisco Conference: nations which had declared war on Germany and Japan and had subscribed¹⁴⁹ to the United Nations Declaration.
- Within three months the charter was ratified by all of the permanent members of the Security Council and by majority of the signatories; and on October 24, 1945, the United Nations formally came into existence.
- This great document contains more than ten thousand words, with 111 Articles divided into 19 chapters.
- The UN charter clearly states the purposes, principles and general nature of this international organization.
- The Charter delineates all the United Nations’ subsequent relationship and programs.

Purposes

The purposes of the United Nations according to Article 1 of the Charter are:

1. **To maintain International Peace and Security:**

- The means for achieving this purpose include peaceful settlement of disputes (Charter VI) and collective security (Charter VII) for prevention and removal of threats to the peace or acts of aggression.
- The Security Council is assigned primary duty for peace maintenance but shares this function with the General Assembly and the International Court of Justice.

2. **To develop friendly relations among nations:**

- Various organs and agencies of the UN provide excellent platform to member-states for developing friendly relations among themselves.

3. **To cooperate in solving international economic, social, cultural and humanitarian problems and in promoting respect for human rights:**

- The Economic and Social Council is to serve as the major organ for putting this goal in practice with enough support from the General Assembly and from such autonomous international specialized agencies in the economic and social sphere as governments may create and bring into formal relationship with the United Nations.
- Major responsibilities for promoting human rights are assigned to the General Assembly and to the Economic and Social Council.

4. **To be a centre for harmonizing the actions of nations in attaining these common ends and more specific goals:**

- These goals are (a) taking appropriate measures to strengthen universal peace, (b) practicing tolerance and living together in peace as good neighbors; and (c) establishing justice and respect for international law.

Principles

111

1. The UN is based on the sovereign equality of all its members.
2. All members are to fulfill in good faith their Charter obligations.
3. They are to settle their international disputes by peaceful means and without endangering peace, security and justice.
4. They are to refrain in their international relations from the threat or use of force against other states.
5. The United Nations shall ensure that states which are not members act in accordance with these principles in so far as is necessary for the maintenance of international peace and security.
6. Nothing in the charter is to authorize the United Nations to intervene in matters

which are essentially within the domestic jurisdiction of any state.

Organs of the United Nations

The United Nations' system is based on five principal organs.

1. The General Assembly
2. The Security Council
3. The Economic and Social Council (ECOSOC)
4. The Secretariat
5. The International Court of Justice.
 - Four of the five principal organs are located at the main United Nations Headquarters located on international territory in New York City.
 - The International Court of Justice is located in The Hague, while other major agencies are based in the UN offices at Geneva, Vienna, and Nairobi. Other UN institutions are located throughout the world.

1. The General Assembly

- The General Assembly is the main deliberative organ of the United Nations and includes all its Members.
- It may discuss any matter arising under the UN Charter and make recommendations to UN Members (except on disputes or situations which are being considered by the Security Council).
- In the Assembly, each nation, large or small, has one vote and important decisions are taken by a two-thirds majority vote.
- The Assembly meets every year from September to December. Special sessions may be summoned by the Assembly, at the request of the Security Council, or at the request of a majority of UN Members.
- The work of the General Assembly is also carried out by its six main committees, the Human Rights Council, other subsidiary bodies and the UN Secretariat.

2. The Security Council

- The Security Council has primary responsibility under the Charter for maintaining peace and security. It can be convened at any time, whenever peace is threatened.
- Member States are obligated to carry out its decisions.
- When a threat to peace is brought before the Council, it usually first asks the parties to reach agreement by peaceful means.
- If fighting breaks out, the Council tries to secure a ceasefire. It may then send

peacekeeping missions to troubled areas or call for economic sanctions and embargoes to restore peace.

- The Council has 15 members, including five permanent members: China, France, the Russian Federation, the United Kingdom and the United States of America.
- The other 10 are elected by the General Assembly on the basis of geographical representation for two-year terms.
- Decisions require nine votes; except on procedural questions, a decision cannot be taken if there is a negative vote by a permanent member (known as the “veto”).

3. The Economic and Social Council

- The Economic and Social Council (ECOSOC) is the central body for coordinating the economic and social work of the United Nations and the UN family of organizations. It has 54 member nations elected from all regions.
- As much as 70 per cent of the work of the UN system is devoted to promoting higher standards of living, full employment, and conditions of economic and social progress and development.
- The Council recommends and directs activities aimed at promoting economic growth of developing countries, supporting human rights and fostering world cooperation to fight poverty and under-development.
- To meet specific needs, the General Assembly has set up a number of specialized agencies, such as the Food and Agriculture Organization of the United Nations (FAO), the World Health Organization (WHO) and the UN Educational, Scientific and Cultural Organization (UNESCO) and programmes such as the UN Development Programme (UNDP), the UN Children’s Fund (UNICEF) and the Office of the UN High Commissioner for Refugees (UNHCR). The work of these agencies and programmes is coordinated by ECOSOC.

4. The International Court of Justice

- The International Court of Justice (ICJ) is the UN’s main judicial organ. Presiding over the ICJ, or “World Court”, are 15 judges, each from a different nation, elected by the General Assembly and Security Council.
- The Court settles legal disputes between nations only and not between individuals, in accordance with international law.
- If a country does not wish to take part in a proceeding it does not have to do so, unless required by special treaty provisions.
- Once a country accepts the Court’s jurisdiction, it must comply with its decision.
- The seat of the International Court of Justice is at The Hague in the Netherlands.

- The offices of the Court occupy the “Peace Palace”, which was constructed by the Carnegie Foundation, a private non-profit organization, to serve as the headquarters of the Permanent Court of International Justice, the predecessor of the present Court.
- The UN makes an annual contribution to the Foundation for the use of the building.

5. **The Secretariat**

- The Secretariat is made up of an international staff working at UN Headquarters in New York, as well as UN offices in Geneva, Vienna, Nairobi and other locations.
- Staff members carry out the substantive and administrative work of the United Nations as directed by the General Assembly, the Security Council and the other organs.
- The Secretariat is headed by the Secretary-General. He is appointed by the General Assembly on the recommendation of the Security Council for a five-year term.
- As the chief administrative officer of the Organization, the Secretary-General directs its work.
- He is also responsible for implementing decisions taken by the various organs of the United Nations.
- The Secretary-General may bring to the attention of the Security Council any matter which, in his opinion, may threaten international peace and security.
- He may use his “good offices” to prevent conflicts or promote peaceful settlement of disputes between countries.
- The Secretary-General may also act on his own initiative to deal with humanitarian or other problems of special importance.

Other Agencies

111

- Other bodies that function as specialized agencies of the UN but are not specifically provided for in the charter are the Food and Agriculture Organization, the International Bank for Reconstruction and Development and the associated International Finance Corporation and International Development Association, the International Civil Aviation Organization, the International Labor Organization, the International Maritime Organization, the International Monetary Fund, the International Telecommunication Union, the United Nations Children’s Fund, the United Nations Educational, Scientific, and Cultural Organization, the Universal Postal Union, the World Health Organization, the World Intellectual Property Organization, and the World Meteorological Organization.